

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariel Courage	Team: Squad #6	CCRB Case #: 201505990	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 07/18/2015 10:20 PM, Sunday, 07/19/2015	Location of Incident: Clinton Street and Lorraine Street and the 76th Precinct stationhouse	Precinct: 76	18 Mo. SOL 1/18/2017	EO SOL 1/18/2017	
Date/Time CV Reported Tue, 07/21/2015 11:09 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/21/2015 11:09 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Devin Baker	28634	952439	076 PCT
2. SGT Elio Ponzo	04140	944904	076 PCT
3. POM Rafael Morla	13749	956114	071 PCT
4. POM Robert Ryan	29928	952202	076 PCT
5. DTS Richard Perez	02060	898275	ESS 06
6. POM Joseph Wendler	02802	886711	ESS 06
7. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Shingru Wang	06706	957269	076 PCT
2. POF Taunya Pelzer	06564	935483	076 PCT
3. POM Emellyndl Alegre	25224	946438	076 PCT
4. POF Jessica Rodriguez	12458	956211	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Elio Ponzo	Abuse: On July 18, 2015, at Clinton Street and Lorraine Street in Brooklyn, Sgt. Elio Ponzo interfered in § 87(2)(b) ability to record an incident.	
B.POM Devin Baker	Force: On July 18, 2015, at Clinton Street and Lorraine Street in Brooklyn, PO Devin Baker used physical force against § 87(2)(b)	
C.POM Rafael Morla	Force: On July 18, 2015, at Clinton Street and Lorraine Street in Brooklyn, PO Rafael Morla used physical force against § 87(2)(b)	
D.POM Robert Ryan	Force: On July 18, 2015, at Clinton Street and Lorraine Street in Brooklyn, PO Robert Ryan used physical force against § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
E. An officer	Force: On July 18, 2015, an officer used physical force against § 87(2)(b)	
F.POM Devin Baker	Discourtesy: On July 18, 2015, at Clinton Street and Lorraine Street in Brooklyn, PO Devin Baker spoke rudely to § 87(2)(b)	
G.DTS Richard Perez	Force: On July 19, 2015, at the 76th Precinct stationhouse, Det. Richard Perez restricted the breathing of § 87(2)(b)	
H.POM Joseph Wendler	Force: On July 19, 2015, at the 76th Precinct stationhouse, PO Joseph Wendler restricted § 87(2)(b) breathing.	

Case Summary

On July 21, 2015, § 87(2)(b) filed this complaint with the CCRB. On July 18, 2015, at about 9:30 p.m., § 87(2)(b) was barbecuing in the Red Hook Recreation Area, a public park, at the intersection of Clinton Street and Lorraine Street in Brooklyn. § 87(2)(b) was with his girlfriend, § 87(2)(b) and three other friends who § 87(2)(b) declined to identify. A group of officers in a marked police van, identified by the investigation as PO Devin Baker, Sgt. Elio Ponzo, PO Tanya Pelzer, and PO Robert Ryan, all of the 76th Precinct, approached and warned the group that the park was closing at 10 p.m. The officers told § 87(2)(b) they would give him time to clean up and left. § 87(2)(b) and his group did not leave the area.

At about 10:15 p.m., PO Baker, Sgt. Ponzo, PO Pelzer, and PO Ryan returned. They were accompanied by PO Rafael Morla and PO Jessica Rodriguez, both of the 71st Precinct, in a separate marked vehicle. The officers instructed § 87(2)(b) to leave, and § 87(2)(b) refused. § 87(2)(b) began to film the officers on his cell phone. § 87(2)(b) came within about a foot of Sgt. Ponzo as he recorded him. Sgt. Ponzo then knocked § 87(2)(b) cell phone from his hand onto the ground (**Allegation A**) and said, "Lock him up." § 87(2)(b) lost the video he recorded of this incident.

In the course of handcuffing § 87(2)(b) PO Baker, PO Morla, and PO Ryan grabbed § 87(2)(b) and brought him onto the ground (**Allegations B, C, and D**). PO Baker punched § 87(2)(b) (**subsumed under Allegation B**). An officer, who § 87(2)(b) did not see and therefore could not describe or otherwise identify, kicked § 87(2)(b) once on his shin (**Allegation E**). PO Baker allegedly told § 87(2)(b) "Shut the fuck up" (**Allegation F**). § 87(2)(b) was arrested for § 87(2)(b)

§ 87(2)(b) (BR 01).

§ 87(2)(b) was transported to the 76th Precinct stationhouse. An ambulance was called for § 87(2)(b) § 87(2)(b) was uncooperative with EMS to the point that ESU was requested. PO Joseph Wendler and Det. Richard Perez of ESU 6 responded and draped a sheet over § 87(2)(b) head, which allegedly restricted his breathing (**Allegations G and H**).

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation due to § 87(2)(b) arrest.
- A Notice of Claim request was submitted on October 7, 2015, and will be added to the case file upon receipt (BR 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (BR 04).
- Sgt. Ponzo has been a member of the service for 8 years. There is one prior CCRB allegation against him from a case that occurred in 2009, which was exonerated § 87(2)(b)

- PO Baker has been a member of the service for 3 years. There are three prior CCRB allegations against him from case 201410627. In that case, an allegation of physical force was exonerated and an allegation of discourtesy that was unsubstantiated. The prior alleged discourteous statement was, "That's all the fuck you need to know." § 87(2)(g)
- PO Rafael Morla has been a member of the service for one year. This is the first CCRB allegation against him.
- PO Robert Ryan has been a member of the service for three years. There are three prior allegations against PO Ryan from three cases, two of which occurred in 2012 and one of which occurred in 2013. § 87(2)(g)
- Det. Perez has been a member of the service for 24 years. There are five prior allegations against him from three cases, one of which occurred in 1996, one of which occurred in 2012, and another which occurred in 2014. § 87(2)(g)
- PO Wendler has been a member of the service for 30 years. This is the first CCRB allegation against him.

Potential Issues

- There are no cameras in the vicinity of the park at Clinton Street and Lorraine Street in Brooklyn.
- § 87(2)(b) lost the video footage he recorded of this incident.
- In filing this complaint with the CCRB (BR 05), § 87(2)(b) said his girlfriend had video footage of the incident at Clinton Street and Lorraine Street. On July 24, 2015, contact was established with § 87(2)(b). § 87(2)(b) denied having the video footage. § 87(2)(b) said she knew someone who did, but declined to provide their name and said she did not have their contact information. § 87(2)(b) promised to obtain the video footage and send it to the undersigned. After § 87(2)(b) provided an in-person statement on July 27, 2015, five further calls were placed to § 87(2)(b) and two letters were mailed to her. Upon each call, the undersigned left voice messages requesting a call back. To date § 87(2)(b) has not contacted the CCRB.
- In his in-person statement (BR 06), § 87(2)(b) thought his friends might have recorded the incident at Clinton Street and Lorraine Street, but declined to provide their names or contact information to the CCRB, though he was informed that this would impede the investigation. § 87(2)(b) promised to try to retrieve video footage from his friends and to send it to the undersigned after his interview. On July 30, 2015, and July 31, 2015, the undersigned called § 87(2)(b) and left voice messages reminding him to send the video footage. On August 4, 2015, the undersigned again called § 87(2)(b) who promised to try to obtain the video footage from his friends and contact the CCRB by August 7, 2015, to inform as to whether or not he was able to obtain it. After § 87(2)(b) did not contact the CCRB as promised, the undersigned called him twice more on August 7, 2015, and August 10, 2015, and left voice messages requesting that he provide the video footage. On August 7, 2015, a letter was mailed to § 87(2)(b) requesting that he provide the video footage. To date, § 87(2)(b) has not contacted the CCRB to provide the video footage.

- Because § 87(2)(b) declined to identify his friends who witnessed the incident, the investigation could not identify or contact them.

Findings and Recommendations

Explanation of Subject Officer Identification

- Sgt. Ponzo acknowledged knocking § 87(2)(b) cell phone from his hand. § 87(2)(g)
- PO Baker, PO Morla, and PO § 87(2)(b) acknowledged using physical force against § 87(2)(b) § 87(2)(g)
- PO Baker most closely matches the description § 87(2)(b) provided of the officer who told him, “Shut the fuck up.” § 87(2)(g)
- § 87(2)(b) alleged that an officer kicked him, but did not see the officer who did so, and therefore could not identify them. § 87(2)(g)
- Det. Perez and PO Wendler acknowledged placing a sheet over § 87(2)(b) head. § 87(2)(g)

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

Allegation A – Abuse of Authority: On July 18, 2015, at Clinton Street and Lorraine Street in Brooklyn, Sgt. Elio Ponzo interfered in § 87(2)(b) ability to record an incident.

The following facts are undisputed: that § 87(2)(b) was barbecuing in the park after its posted closing time, that at approximately 10:20 p.m. Sgt. Ponzo and his fellow officers warned § 87(2)(b) to leave the park, and that at 11:34 p.m., Sgt. Ponzo and his fellow officers returned and again ordered § 87(2)(b) to leave the park, which he refused to do.

It is also undisputed that when Sgt. Ponzo returned at 11:34 p.m., he was in the front passenger seat of a marked van that PO Baker drove, with PO Pelzer sitting in the backseat. The

officers ordered § 87(2)(b) to leave from inside the van. § 87(2)(b) approached PO Baker's window, which was rolled down, and began recording the officers on his cell phone, and that at some point while doing so, § 87(2)(b) breached the threshold of the van's window, reaching into the van to film officers.

It is further undisputed that officers then exited the van. Sgt. Ponzo and PO Baker attempted to ascertain to whom the barbecue equipment belonged, and that during this time § 87(2)(b) came extremely close to Sgt. Ponzo while recording him, and that Sgt. Ponzo knocked his phone from his hand. It is also not disputed that immediately after knocking the phone from his hand, Sgt. Ponzo instructed his officers to arrest § 87(2)(b). § 87(2)(b) (BR 06) denied that he or any other attendee of the barbecue was drinking. § 87(2)(b) had two glasses of liquor prior to attending the barbecue, which began at about 5:30 p.m. or 6:30 p.m., but consumed no further alcohol, or any other drugs, and did not feel intoxicated by 9:30 p.m., the time at which he thought the officers first arrived.

When the officers first arrived, they informed § 87(2)(b) that he could not be barbecuing after dark as there had been shootings and other crimes in the area, and that they would give him time to pack up but that he needed to leave.

§ 87(2)(b) thought the officers returned at around 10:15 p.m. (all officers, and the EVENT report (BR 25), note that they returned at 11:34 p.m.) § 87(2)(b) went to the marked van containing PO Baker, Sgt. Ponzo, and PO Pelzer, and appeared to speak with officers. § 87(2)(b) continued manning the grill at this time, and did not know what conversation § 87(2)(b) had with the officers. After § 87(2)(b) spoke to the officers for about 10 minutes, § 87(2)(b) approached the driver side window, began recording the officers on his cell phone, offered the officers food from the barbecue, and asked what they were doing wrong. In his in-person statement, § 87(2)(b) initially denied that he breached the threshold of the vehicle, but later acknowledged that he did so.

§ 87(2)(b) said that Sgt. Ponzo, PO Baker, PO Pelzer then exited the van. PO Morla and PO Rodriguez, who were in a marked sedan parked nearby, also exited their vehicle at this time. § 87(2)(b) moved back towards the grill. Sgt. Ponzo approached the grill and asked, "Whose grill is this?" No one in the group responded. § 87(2)(b) continued recording the incident, holding his cell phone extended partially in front of his body in his left hand, and turning to and fro to document the entirety of the incident. § 87(2)(b) was protesting at this time that they had done nothing wrong.

§ 87(2)(b) turned and found himself face to face with Sgt. Ponzo. Without first saying anything to § 87(2)(b) Sgt. Ponzo took his flashlight and used it to knock § 87(2)(b) cell phone from his hand onto the ground. Sgt. Ponzo then said, "Lock him up."

Medical records from § 87(2)(b) (BR 07) note that § 87(2)(b) was brought in for a psychiatric evaluation for aggressive, disorganized behavior and intoxication. § 87(2)(b) arrived at § 87(2)(b) at § 87(2)(b) at which point his blood alcohol content was about .150. § 87(2)(b) told medical staff at § 87(2)(b) that police came to stop his barbecue, and that he was "running his mouth" and became angry and aggressive because he felt that he was not doing anything wrong."

As was previously discussed, § 87(2)(b) did not respond to contact attempts and § 87(2)(b) declined to identify other witnesses to this incident, though he was informed that this would obstruct the investigation.

Sgt. Ponzo (BR 08) said that he was advised by the Commanding Officer of the 76th Precinct to enforce park rules in the Red Hook area, as there had been multiple shootings after the

posted park closing time, 10 p.m., in the week or two weeks before this incident. After advising § 87(2)(b) to pack up his barbecue at 10:20 p.m., Sgt. Ponzo returned at 11:34 p.m. and saw that § 87(2)(b) and his group was still barbecuing. From his van, Sgt. Ponzo called out to the group, ‘Are you guys going to leave or not?’ § 87(2)(b) was yelling and cursing, though Sgt. Ponzo did not remember what he said specifically. § 87(2)(b) approached the vehicle holding his cell phone in his hand, and inserted his hand into the police vehicle holding his cell phone. PO Baker ordered him to remove his hand, and § 87(2)(b) did not. PO Baker began to roll the window up and § 87(2)(b) tried to hold it down with one hand. Officers then exited the vehicle and approached the grill.

Once Sgt. Ponzo moved closer to the grill, § 87(2)(b) came extremely close to Sgt. Ponzo and held his cell phone “millimeters or inches” from Sgt. Ponzo’s face, so that it was “right up to [his] nose.” § 87(2)(b) continued to raise his voice and curse. Sgt. Ponzo told § 87(2)(b) “You have every right to record me, but at a safe distance. You’re too close.” § 87(2)(b) only moved the cell phone closer to Sgt. Ponzo. Sgt. Ponzo gave § 87(2)(b) several warnings over a period of minutes to “Get the phone out of my face.” § 87(2)(b) did not comply. Because § 87(2)(b) was so close to Sgt. Ponzo, because § 87(2)(b) was not complying with his commands to leave the park, because § 87(2)(b) came closer when instructed to move farther away, and because § 87(2)(b) was behaving in a belligerent fashion, Sgt. Ponzo feared that § 87(2)(b) might hit him with the cell phone, or otherwise use it as a weapon. Sgt. Ponzo therefore knocked the cell phone from § 87(2)(b) hand and almost immediately thereafter gave the order for his officers to arrest him.

PO Baker (BR 09) generally corroborated Sgt. Ponzo’s statement. PO Baker added that he saw containers of alcohol at the scene of the barbecue, which led him to believe that the group had been drinking, particularly § 87(2)(b) who was glassy-eyed and smelled of alcohol. PO Baker also added that the grill was set up directly underneath a tree in the park, creating a possibly hazardous condition. § 87(2)(b) raised his voice and cursed, saying, “I’ll fucking leave when I’m fucking ready.” PO Baker did not corroborate that § 87(2)(b) attempted to hold the window of the police vehicle down. PO Baker also said that when he asked to whom the grill belonged, initially no one responded, but § 87(2)(b) eventually acknowledged that it belonged to him. PO Baker then requested § 87(2)(b) identification, intending to issue him multiple summonses, one for being in the park after posted closing hours, one for having an open flame in a public park, one for disorderly conduct, and one for an open container violation. § 87(2)(b) refused to provide his identification. PO Baker did not see Sgt. Ponzo knock § 87(2)(b) phone from his hands, as another barbecue attendee began protesting to PO Baker that he “just want to finish [his] ribs,” but heard Sgt. Ponzo telling § 87(2)(b) “You’re free to record me, just not that close,” and § 87(2)(b) replying, “I can do whatever I want.”

PO Ryan (BR 10) also generally corroborated Sgt. Ponzo’s statement.

PO Morla (BR 11) denied witnessing this aspect of the encounter with § 87(2)(b) as he remained standing outside of his RMP and did not approach the barbecue with the other officers.

The officers’ account is closely corroborated by the arrest report completed by PO Pelzer (BR 01), which notes that § 87(2)(b) was observed having a barbecue in a restricted area of Red Hook Park creating a hazardous condition, that he was told several times and given ample time to leave the park, that he became belligerent and refused to leave, that he reached into the marked van through the open driver side window, that he refused to comply with orders to step

away from the van, that he held a camera phone to Sgt. Ponzo's face and was informed that he had a right to record from a reasonable distance, and that he failed to comply.

According to the NYPD Finest Message #9881632, released on August 6, 2014, the public is legally permitted to record police interactions, including arrests or other situations. Blocking or obstructing cameras, or ordering the person to cease the recording constitutes censorship and violated the first amendment. However, the person recording may not interfere with police operations (BR 12).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation B – Force: On July 18, 2015, at Clinton Street and Lorraine Street in Brooklyn, PO Devin Baker used physical force against § 87(2)(b)

Allegation C – Force: On July 18, 2015, at Clinton Street and Lorraine Street in Brooklyn, PO Rafael Morla used physical force against § 87(2)(b)

Allegation D – Force: On July 18, 2015, at Clinton Street and Lorraine Street in Brooklyn, PO Robert Ryan used physical force against § 87(2)(b)

Allegation E – Force: On July 18, 2015, an officer used physical force against § 87(2)(b)

It is undisputed that some level of physical force was used to effect § 87(2)(b) arrest.

§ 87(2)(b) (BR 06) said that after Sgt. Ponzo said, “Lock him up,” PO Baker, PO Morla, PO Pelzer, and an unknown number of other officers who he could not describe, grabbed his arms. § 87(2)(b) denied resisting at this juncture, but began screaming, “What am I getting locked up for?” The officers brought § 87(2)(b) onto the ground. As § 87(2)(b) was brought down, PO Morla punched § 87(2)(b) once on the forehead, near the top of his head. Once on the ground, § 87(2)(b) rolled onto his side and curled up into a ball, crossing his arms in front of his face so that when PO Baker attempted to punch him in the face a second time, § 87(2)(b) was able to deflect it. An officer who § 87(2)(b) could not see kicked § 87(2)(b) once on his shin, which resulted in no injury. The officers ordered § 87(2)(b) to turn onto his face, and eventually maneuvered him so that he was face-down on the ground. As they did so, § 87(2)(b) face scraped against the pavement, causing a laceration to his forehead. PO Baker pressed his knee into § 87(2)(b) back. § 87(2)(b) was then handcuffed. Throughout this time, the other barbecue attendees gathered within five or 10 feet of the officers and screamed, “Why are you doing that to him?”

§ 87(2)(b) arrest photograph (BR 13) depicts an indistinct mark, approximately an inch wide, possibly an abrasion, as well as an approximately two-inch long scratch on § 87(2)(b) right temple, and another scratch, approximately one inch in length, on his right cheek. No other injuries are depicted. § 87(2)(b) CCRB photograph (BR 14), taken upon his interview on July 27, 2015, depicts a healing scar over the abrasion on his forehead, though the marks on his cheek are not visible.

§ 87(2)(b) did not complain of any injuries to medical staff at § 87(2)(b) (BR 07), nor were any injuries noted to him. Although the FDNY Ambulance Call Report is still outstanding, the two EMTs who transported § 87(2)(b) to § 87(2)(b), EMT § 87(2)(b) (BR 15) and EMT § 87(2)(b) (BR 16) said that § 87(2)(b) demanded to be brought to the hospital but refused to specify his complaint and refused to be examined for injuries. On § 87(2)(b), § 87(2)(b) went to § 87(2)(b) (BR 17), and said that he had pain to his back, right elbow, right wrist, and face from an assault by police officers § 87(2)(b). No injury was noted except tenderness and an abrasion to the right side of his face.

The medical treatment of prisoner form documents no injury to § 87(2)(b) though it notes he complained of back and neck pain (BR 18).

PO Baker (BR 09) said that when Sgt. Ponzo gave the order to arrest § 87(2)(b) began to run towards Clinton Street, at a slightly southbound angle. PO Ryan pursued § 87(2)(b) saying, “Stop running.” PO Baker followed behind PO Ryan. PO Ryan grabbed § 87(2)(b) by his shirt. § 87(2)(b) turned to face PO Ryan with his hands clenched into fists, leading PO Baker to believe that he was going to punch PO Ryan, though he did not see him do so. PO Baker then reached PO Ryan. In the course of struggling with § 87(2)(b) PO Ryan, PO Baker, and § 87(2)(b) all fell to the ground. § 87(2)(b) landed on his side. PO Baker positioned himself close to § 87(2)(b) head. § 87(2)(b) moved his arms in multiple directions so that it was difficult to grab them, attempted to punch or elbow officers, some of which made contact with PO Baker, and kicked his legs. PO Baker acknowledged punching § 87(2)(b) approximately four times at the top of his head in an attempt to overcome his resistance, as he had not been successful in his attempts to grip § 87(2)(b) arms. Other officers also assisted, though PO Baker did not know how many, or how they helped. PO Baker did not kick § 87(2)(b) or see any officer do so.

PO Baker sustained a sprained left wrist at some point during this incident, but was unsure how it was sustained. This injury is documented in his AIDED and LOD report (BR 19).

PO Ryan (BR 10) corroborated PO Baker's account, adding that § 87(2)(b) attempted to remove his shirt after PO Ryan grabbed it, but that they fell to the ground before § 87(2)(b) could do so. PO Ryan believed § 87(2)(b) landed on his face, kept his hands clenched beneath his chest and kicked his face. PO Ryan tried to pull § 87(2)(b) arms out from underneath him.

PO Morla (BR 11) corroborated that § 87(2)(b) ran. When PO Morla reached the struggle, other officers had already caught up to § 87(2)(b) who was resisting by clenching his hands into fists and holding them tightly to his chest. PO Morla grabbed § 87(2)(b) by his legs to bring him onto the ground. PO Morla fell with § 87(2)(b). PO Morla sustained an abrasion to his arm from the manner in which he landed on the ground. This is documented in his LOD and AIDED report (BR 20). § 87(2)(b) curled into the fetal position on his side, with his hands clenched into fists, which he held stiff in front of his face. PO Morla positioned himself at § 87(2)(b) midsection and tried to pull his arms from his face. PO Rodriguez stood somewhere behind PO Morla and repeatedly yelled, "Stop resisting," which had no effect on § 87(2)(b) behavior. PO Morla did not kick or punch § 87(2)(b) or see any officer do so.

Sgt. Ponzo (BR 08) closely corroborated PO Baker's account of § 87(2)(b) resistance. Sgt. Ponzo did not participate in the struggle, but attempted to simultaneously watch the struggle for his officers' safety and to keep the other barbecue attendees from coming too close.

Officers must use the minimum force necessary to effect an arrest. Patrol Guide Procedure 203-11 (BR 21).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation F – Discourtesy: On July 18, 2015, at Clinton Street and Lorraine Street in Brooklyn, PO Devin Baker spoke rudely to § 87(2)(b)

§ 87(2)(b) (BR 06) said that while he was on the ground and PO Baker had his knee pressed into his back, § 87(2)(b) called PO Baker a "pussy" and a "bitch," to which PO Baker replied, "Shut the fuck up."

PO Baker (BR 09) denied making this statement. All other officers interviewed denied hearing PO Baker make this statement.

§ 87(2)(g)

§ 87(2)(g)

Allegation G – Force: On July 19, 2015, at the 76th Precinct stationhouse, Det. Richard Perez restricted the breathing of § 87(2)(b)

Allegation H – Force: On July 19, 2015, at the 76th Precinct stationhouse, PO Joseph Wendler restricted § 87(2)(b) breathing.

§ 87(2)(b) (BR 06) said that in the holding cells of the 76th Precinct stationhouse, he began screaming that his back hurt and that he wanted to go to the hospital. § 87(2)(b) said that two officers in ESU uniforms, identified by the investigation as Det. Perez and PO Wendler, came to the holding cells, handcuffed him, and escorted to an ambulance in front of the 76th Precinct stationhouse. § 87(2)(b) then refused to go to the hospital because he felt that they were going to take him to the “crazy hospital,” for a psychiatric evaluation. § 87(2)(b) also refused to lie down on the stretcher because he was still rear handcuffed and his upper back hurt.

Det. Perez and PO Wendler then told § 87(2)(b) to sit down on a bench inside the ambulance, which § 87(2)(b) did. An EMT then sedated § 87(2)(b) with an injection. Det. Perez and PO Wendler then draped a white sheet over § 87(2)(b) head. Det. Perez then placed his arm across § 87(2)(b) upper back and pushed him downwards, so that § 87(2)(b) was bent deeply forward at his waist. The sheet was then tight over § 87(2)(b) face, so that he had difficulty breathing. § 87(2)(b) did not know how long this lasted before the sedative took effect and he lost consciousness.

EMT § 87(2)(b) (BR 15) said that he received a call to respond to the 76th Precinct stationhouse. When he arrived, officers escorted him to the holding cells, where he first encountered § 87(2)(b). § 87(2)(b) was agitated, and told EMT § 87(2)(b) “Shut the fuck up. Just do your job, just take me to the hospital.” § 87(2)(b) refused to state why he wanted to go to the hospital, refused to answer EMT § 87(2)(b)’s questions, and refused to allow EMT § 87(2)(b) or his partner, EMT § 87(2)(b) to examine him. § 87(2)(b) behavior did not change despite the attempts of EMT § 87(2)(b) and EMT § 87(2)(b) as well as various officers standing around the holding cells, to calm or reason with him.

EMT § 87(2)(b) and EMT § 87(2)(b) escorted § 87(2)(b) to their ambulance, which was parked in front of the 76th Precinct stationhouse, but § 87(2)(b) refused to walk into the ambulance. § 87(2)(b) eventually agreed to lie down on a stretcher which was then wheeled into the ambulance. When EMT § 87(2)(b) attempted to strap § 87(2)(b) into the stretcher, which he is required to do by state law to ensure that § 87(2)(b) would not fall out, § 87(2)(b) began to “go nuts,” kicked his legs, writhed his body, and began to spit. EMT § 87(2)(b) attempted to place an oxygen mask over § 87(2)(b) face in part to prevent him from spitting, but § 87(2)(b) continued to attempt to roll onto his stomach, pushing the oxygen mask off of his face. Because § 87(2)(b) was “one of the most uncooperative patients” EMT § 87(2)(b) had ever dealt with, he requested his supervisor, FDNY Lieutenant § 87(2)(b) to the scene. Lt. § 87(2)(b) requested a paramedic unit to sedate § 87(2)(b).

Det. Perez and PO Wendler arrived and discussed placing § 87(2)(b) in full-body restraints, but did not ultimately do so. When the paramedic unit sedated § 87(2)(b) EMT § 87(2)(b) saw that § 87(2)(b) was sitting on a bench in the ambulance. EMT § 87(2)(b) was unsure how Det. Perez and PO Wendler were positioned relative to § 87(2)(b) at this time, and

denied seeing them place a sheet over him. EMT § 87(2)(b) had no indication that § 87(2)(b) breathing was restricted.

EMT § 87(2)(b) (BR 16) and Lt. § 87(2)(b) (BR 22) generally corroborated EMT § 87(2)(b)'s account, and also did not see the officers drape a sheet over § 87(2)(b) or have any indication that his breathing was restricted.

Det. Perez (BR 23) and PO Wendler (BR 24) both said they arrived once § 87(2)(b) was already in the ambulance. § 87(2)(b) was spitting, moving his body, and generally behaving in an uncooperative fashion when they arrived.

PO Wendler said that they considered putting § 87(2)(b) in a full-body restraint, but decided not to do so because it was very warm outside, and they did not want § 87(2)(b) to overheat. Det. Perez made no mention of this.

PO Wendler said that when the paramedic unit arrived to sedate § 87(2)(b) he and Det. Perez entered the ambulance, draped a white sheet from the ambulance over § 87(2)(b) to prevent him from spitting upon them, and moved him to sit on a bench inside the ambulance. PO Wendler did not remember if they or the EMTs first attempted to put some kind of mask on § 87(2)(b). Aside from the full-body restraints, PO Wendler had no equipment to prevent someone from spitting, and so resorted to a sheet.

Det. Perez initially did not remember if he and PO Wendler draped a sheet over § 87(2)(b) and thought possibly the EMTs did so, but after reviewing the ESU report (BR 25), acknowledged that he and PO Wendler did to prevent § 87(2)(b) from spitting.

Det. Perez and PO Wendler both said they sat on either side of § 87(2)(b) on the bench and held him by his arms so that he would not move as the paramedics injected him. Both denied tightening the sheet over § 87(2)(b) face, or having any indication that his breathing was restricted.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Pod:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date